



AN ACT REVISING ELECTION JUDGE QUALIFICATIONS FOR SCHOOL DISTRICT ELECTIONS; ALLOWING QUALIFIED REGISTERED ELECTORS IN THE COUNTY WHERE THE ELECTION IS BEING HELD TO SERVE AS ELECTION JUDGES; AMENDING SECTION 20-20-109, MCA; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE.

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 20-20-109, MCA, is amended to read:

"20-20-109. Election judges -- qualifications -- training. (1) ~~Election (a) Except as provided in subsection (1)(b), election~~ judges must be qualified registered electors of the school district in which they serve.

(b) If a county election administrator agrees to conduct an election pursuant to 20-20-417, election judges must be qualified registered electors in the county in which they serve.

(2) An election judge may not be:

- (a) the candidate;
- (b) an ascendant, descendant, brother, or sister of a candidate; or
- (c) the spouse of the candidate or of any of the individuals listed in subsection (2)(b).

(3) School election judges must meet the training and certification requirements of 13-4-203."

Section 2. Effective date. [This act] is effective on passage and approval.

- END -

I hereby certify that the within bill,
HB 125, originated in the House.

Chief Clerk of the House

Speaker of the House

Signed this _____ day
of _____, 2025.

President of the Senate

Signed this _____ day
of _____, 2025.

HOUSE BILL NO. 125

INTRODUCED BY D. BEDEY, M. BERTOGLIO, W. MCKAMEY, J. DARLING

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